

24STLC03866 24STLC03866

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-14

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Case Number: 24STLC03866 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff The Hartford

Underwriters Insurance Company's Motion for Order to Correct Clerical Error in Judgment and Amend Judgment Nunc Pro Tunc is granted.

Plaintiff is to

file a proposed amended judgment in accordance with this order within 20 days.

Analysis:

On May 29, 2024, Plaintiff The Hartford

Underwriters Insurance Company filed the instant action against Defendant AW Collision of Monrovia, a California Corporation ("Defendant"). The Court entered default judgment on December 17, 2024. However, the default judgment does not include the parties' names at paragraph 5 of the Judicial Council form JUD-100. (Judgment, 12/17/24, ¶5.)

On April 29, 2026, Plaintiff filed the

instant Motion for Order to Correct Clerical Error in Judgment and Amend Judgment Nunc Pro Tunc. At the initial hearing, the Court noted that Plaintiff served Defendant with the Motion only by electronic mail and continued the matter to ensure proper service on Defendant in accordance with the statutory requirements. (Minute Order 08/03/26.) The Court ordered Plaintiff to file proper proof of service by August 17, 2026. Plaintiff filed Proof of Service of the Motion and Notice of Continuance of Hearing with proof of service of the same, on August 3, 2026. This demonstrates mail service of the Motion and

notice of hearing upon Defendant as required.

Plaintiff moves pursuant to Code of Civil

Procedure section 473, subdivision (d) to amend the judgment entered on December 17, 2024 by adding the parties' names at paragraph 5. The statute provides that "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed...." (Code Civ. Proc., § 473, subd. (d).) The failure to include the parties' names at paragraph 5 is a clear clerical error that may be corrected under the moving statute.

Accordingly, Plaintiff The Hartford

Underwriters Insurance Company's Motion for Order to Correct Clerical Error in Judgment and Amend Judgment Nunc Pro Tunc is granted.

Plaintiff is to

file a proposed amended judgment in accordance with this order within 20 days.

Moving

party to give notice.